

25TRCV01474 25TRCV01474

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-08-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C5%2C08%2F25%2F2026

Source SHA-256: 553b77b8f9462a3cc84e979a66d067c8caae75b6fa0034a9952b5081aa3fbe90

Case Number: 25TRCV01474 Hearing Date: August 25, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

GEMMA LI CHAO

;

Plaintiff,

vs.

CROSS CREEK VILLAGE

, et al.;

Defendants.

Case

No.:

25TRCV01474

Hearing

Date:

August
25, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT AK TREADMILL REPAIR SPECIALISTS,
INC.'S MOTION TO COMPEL PLAINTIFF GEMMA LI CHAO'S FURTHER RESPONSES TO
SPECIAL INTERROGATORIES (SET ONE)

(2)

DEFENDANT AK TREADMILL REPAIR SPECIALISTS,
INC.'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS (SET
ONE)

(3)

DEFENDANT AK TREADMILL REPAIR SPECIALISTS,
INC.'S REQUESTS FOR MONETARY SANCTIONS

MOVING PARTY: Defendant, AK Treadmill Repair
Specialists, Inc.

RESPONDING

PARTY: Plaintiff, Gemma Li Chao

(1) Defendant AK Treadmill Repair Specialists,
Inc.'s Motion to Compel Plaintiff Gemma Li Chao's Further Responses to Special
Interrogatories (Set One) is DENIED pursuant to Code of Civil Procedure section
2030.300, subdivision (b)(1).

(2) Defendant AK Treadmill Repair Specialists,
Inc.'s Motion to Compel Further Responses to Requests for Admissions (Set One)
is DENIED pursuant to Code of Civil Procedure section 2033.290, subdivision (b)(1).

(3) Defendant AK Treadmill Repair Specialists, Inc.'s Requests for Monetary Sanctions are DENIED pursuant to Code of Civil Procedure sections 2030.300, subdivision (b)(1), and 2033.290, subdivision (b)(1).

The Court considers the moving papers filed on May 26, 2026, the opposition briefs filed on July 7, 2026, and August 10, 2026, and the reply brief filed on July 15, 2026.

BACKGROUND

Factual Background

On May 7, 2025, plaintiff Gemma Li Chao ("Plaintiff") filed the Complaint against defendants Cross Creek Village, AK Treadmill Repair Specialists, Inc. ("AK Treadmill"), and DOES 1 through 50. The Complaint includes the following causes of action: (1) Negligence and (2) Premises Liability.

On January 9, 2026, Cross Creek Village Homeowners Association ("Cross Creek") filed a cross-complaint against AK Treadmill and ROES 1 through 50. The cross-complaint includes the following causes of action: (1) Declaratory Relief; (2) Implied Indemnity Pursuant to C.C.P. 1021.6; (3) Contribution; and (4) Apportionment.

On January 13, 2026, AK Treadmill filed a cross-complaint against Cross Creek and ROES 1 through 20. The cross-complaint includes the following causes of action: (1) Full Indemnity; (2) Partial Indemnification; and (3) Declaratory Relief.

On February 10, 2026, AK Treadmill served Plaintiff with Special Interrogatories (Set One) and Requests for Admission (Set One). (Declaration of Margarita Hernandez Martinez re: SROG ("SROG Martinez Decl."), ¶ 2, Exh. A; Declaration of Margarita Hernandez Martinez re: RFA ("RFA Martinez Decl."), ¶ 2, Exh. A.)

After receiving two extensions, Plaintiff provided their verified responses on April 10, 2026. (SROG Martinez Decl., ¶¶ 2-5, Exhs. B-D; RFA Martinez

Decl., ¶¶ 2-5, Exhs. B-D.)

On May 21, 2026,

at approximately 3:00 p.m., the parties' counsel engaged in a telephonic

conference to address the alleged deficiencies in Plaintiff's responses. (SROG Martinez Decl., ¶ 6; RFA Martinez Decl., ¶ 6; Declaration of Varand

Vartanian re: SROG ("SROG Vartanian Decl."), ¶ 6a; Declaration of Varand

Vartanian re: RFA ("RFA Vartanian Decl."), ¶ 6a.) Additionally, AK Treadmill sought an extension regarding

the deadlines for its motions to compel further responses, asserting the intent

to resolve the issues informally. (SROG Martinez Decl., ¶ 6; RFA Martinez

Decl., ¶ 6.)

Later that same day, at 4:37

p.m., AK Treadmill issued a 159-page meet-and-confer letter, requesting that

Plaintiff provide supplemental responses to 44 allegedly defective special

interrogatories and 44 requests for admission.

(SROG Martinez Decl., ¶ 7, Exh. E; RFA Martinez Decl., ¶ 7, Exh. E; SROG

Vartanian Decl., ¶ 6b; RFA Vartanian Decl., ¶ 6b.) The letter specified a deadline for Plaintiff's

response, indicating that if no response were received by the following day, AK

Treadmill would proceed to file motions to compel further responses unless an

agreement to extend the deadline for such motions was reached. (SROG Martinez Decl., ¶ 7, Exh. E; RFA Martinez

Decl., ¶ 7, Exh. E; SROG Vartanian Decl., ¶ 6b; RFA Vartanian Decl., ¶ 6b.)

On May 22, 2026, at

2:22 p.m., AK Treadmill's

counsel sent an email requesting an extension to file the motions to compel and

asking for additional time to resolve the issues informally. (SROG Martinez Decl., ¶ 8, Exh. F; RFA Martinez

Decl., ¶ 8, Exh. F.)

Later that same

day, at 5:19 p.m., Plaintiff's counsel responded, denying the request for an

extension and asserting that AK Treadmill had not engaged in a reasonable or

good faith effort to address the alleged issues due to the 24-hour turnaround

time provided. (SROG Martinez Decl., ¶ 9, Exh. G; RFA Martinez

Decl., ¶ 9, Exh. G; SROG Vartanian Decl., ¶ 7a, Exh. 1; RFA Vartanian Decl., ¶ 7a,

Exh. 1.)

On May 23, 2026, AK

Treadmill's counsel

asserted that they had requested a three-week extension to enable Plaintiff to

respond without the constraint of a 24-hour deadline. (SROG Martinez Decl., ¶ 10, Exh. H; RFA Martinez Decl., ¶ 10, Exh. H.)

Furthermore, AK Treadmill's counsel once again requested an extension. (SROG Martinez Decl., ¶ 10, Exh. H; RFA Martinez Decl., ¶ 10, Exh. H.)

On May 26, 2026, AK Treadmill's counsel reached out to Plaintiff's counsel to request a thirty-day extension for the purpose of filing the motions to compel, with the intention of resolving the outstanding issues informally if possible. (SROG Martinez Decl., ¶ 11; RFA Martinez Decl., ¶ 11.)

Procedural Background

On May 26, 2026, AK Treadmill filed these motions to compel further. On July 7, 2026, Plaintiff filed an opposition brief to the motion to compel further responses to Special Interrogatories (Set One). On July 15, 2026, AK Treadmill filed a reply brief. On August 10, 2026, Plaintiff filed an opposition brief to the motion to compel further responses to Requests for Admission (Set One). To date, AK Treadmill has not filed a reply brief regarding Requests for Admission (Set One).

LEGAL STANDARDS

Code of Civil Procedure

section 2030.300 provides that “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that” the responses contain: (1) answers that are evasive or incomplete; (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response; or (3) unmerited or overly generalized objections.

(Code Civ. Proc., §2030.300, subd. (a).) “[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” (Code Civ. Proc., §2030.300, subd. (c).) Moreover, “[a] motion under

subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., §2030.300, subd. (b)(1).)

Additionally, "Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code of Civ. Proc., § 2017.010.) For discovery purposes, information is regarded as relevant "if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof." (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §2030.300, subd. (d).)

Code of Civil Procedure section 2033.290, subdivision (a), provides that "[o]n receipt of responses to requests for admission, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete[; and] (2) An objection to a particular request is without merit or too general."

(Code Civ. Proc., § 2033.290, subd. (a).) "[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission." (Code Civ. Proc., §2033.290, subd. (c).) Moreover, "[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., §2033.290, subd. (b)(1).)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.290, subd. (d).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd.

(a).) “Misuses of the discovery process

include ... (d) Failing to respond or to submit to an authorized method of discovery. (h) Making or opposing, unsuccessfully and

without substantial justification, a motion to compel or to limit discovery.” (Code Civ. Proc., § 2023.010, subds. (d), (h).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

AK Treadmill was required to

meet and confer with Plaintiff before filing these motions. (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2023.290, subd. (b)(1).) Code of Civil

Procedure section 2016.040 states that a meet and confer declaration “in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”

(Code Civ. Proc., § 2016.040, subd. (a).) “ ‘The parties must present to each other the

merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a 'sincere' effort to resolve the matter.' " (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On May 21, 2026, at approximately 3:00 p.m., the parties' counsel engaged in a telephonic conference to address the alleged deficiencies in Plaintiff's responses. (SROG Martinez Decl., ¶ 6; RFA Martinez Decl., ¶ 6; SROG Vartanian Decl., ¶ 6a; RFA Vartanian Decl., ¶ 6a.) Additionally, AK Treadmill sought an extension regarding the deadlines for its motions to compel further responses, asserting the intent to resolve the issues informally. (SROG Martinez Decl., ¶ 6; RFA Martinez Decl., ¶ 6.)

Later that same day, at 4:37 p.m., AK Treadmill issued a 159-page meet-and-confer letter, requesting that Plaintiff provide supplemental responses to 44 allegedly defective special interrogatories and 44 requests for admission. (SROG Martinez Decl., ¶ 7, Exh. E; RFA Martinez Decl., ¶ 7, Exh. E; SROG Vartanian Decl., ¶ 6b; RFA Vartanian Decl., ¶ 6b.) The letter specified a deadline for Plaintiff's response, indicating that if no response were received by the following day, AK Treadmill would proceed to file motions to compel further responses unless an agreement to extend the deadline for such motions was reached. (SROG Martinez Decl., ¶ 7, Exh. E; RFA Martinez Decl., ¶ 7, Exh. E; SROG Vartanian Decl., ¶ 6b; RFA Vartanian Decl., ¶ 6b.)

On May 22, 2026, at 2:22 p.m., AK Treadmill's counsel sent an email requesting an extension to file the motions to compel and asking for additional time to resolve the issues informally. (SROG Martinez Decl., ¶ 8, Exh. F; RFA Martinez Decl., ¶ 8, Exh. F.)

Later that same day, at 5:19 p.m., Plaintiff's counsel responded, denying the request for an extension and asserting that AK Treadmill had not engaged in a reasonable or good faith effort to address the alleged issues due to the 24-hour turnaround time provided. (SROG Martinez Decl., ¶ 9, Exh. G; RFA Martinez

Decl., ¶ 9, Exh. G; SROG Vartanian Decl., ¶ 7a, Exh. 1; RFA Vartanian Decl., ¶ 7a, Exh. 1.)

On May 23, 2026,

AK Treadmill's counsel

asserted that they had requested a three-week extension to enable Plaintiff to respond without the constraint of a 24-hour deadline. (SROG Martinez Decl., ¶ 10, Exh. H; RFA Martinez Decl., ¶ 10, Exh. H.)

Furthermore, AK Treadmill's counsel once again requested an extension. (SROG Martinez Decl., ¶ 10, Exh. H; RFA Martinez Decl., ¶ 10, Exh. H.)

On May 26, 2026,

AK Treadmill's counsel reached

out to Plaintiff's counsel to request a thirty-day extension for the purpose of filing the motions to compel, with the intention of resolving the outstanding issues informally if possible. (SROG Martinez Decl., ¶ 11; RFA Martinez Decl., ¶ 11.)

The Court finds that AK Treadmill did not engage in a reasonable or good-faith effort to address the alleged deficiencies. Rather, AK Treadmill delayed until the last moment to meet and confer, which compelled Plaintiff to either provide supplemental responses to 88 requests within a 24-hour period or to grant the requested extension in order to avoid the motions to compel. Given the exceedingly short timeframe, it is impossible for Plaintiff to provide verified supplemental responses. Consequently, Plaintiff was essentially forced to grant the extension or face the motions. This behavior is neither reasonable nor conducted in good faith. Plaintiff should not be required to accept AK Treadmill's proposal due to the latter's failure to engage in timely discussions.

As such, AK Treadmill's motions to compel and the accompanying requests for monetary sanctions are DENIED.

ORDERS

1) Defendant

AK Treadmill Repair Specialists, Inc.'s Motion to Compel Plaintiff Gemma Li Chao's Further Responses to Special Interrogatories (Set One) is DENIED.

2) Defendant

AK Treadmill Repair Specialists, Inc.'s Motion to Compel Further Responses to

Requests for Admissions (Set One) is DENIED.

3) Defendant

AK Treadmill Repair Specialists, Inc.'s Requests for Monetary Sanctions are
DENIED.

4) AK

Treadmill is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED

DATED: August 25, 2026

Tamara
Hall

Judge
of the Superior Court